

Short title
and repeals.

4.—(1) This Act may be cited as the White Fish and Herring Industries Act, 1961.

(2) The enactments specified in the Schedule to this Act are hereby repealed to the extent specified in the third column of that Schedule.

SCHEDULE

ENACTMENTS REPEALED

Session and Chapter	Short Title	Extent of Repeal
14 & 15 Geo. 6. c. 30.	The Sea Fish Industry Act, 1951.	In section seventeen, in subsection (1), the words from "so long as" to the end.
1 & 2 Eliz. 2. c. 17.	The White Fish and Herring Industries Act, 1953.	In section three, subsection (2). In section five, in subsection (1) the words from "not exceeding" to "length and" and in subsection (2) the words from "but no" to the end.
5 & 6 Eliz. 2. c. 22.	The White Fish and Herring Industries Act, 1957.	In section four, the words "(not exceeding twenty-four million pounds)".
8 & 9 Eliz. 2. c. 7.	The Sea Fish Industry Act, 1959.	In section one, the words from "and for the words" to the end.

CHAPTER 19

An Act to make further provision with respect to charges for the provision of dental and optical appliances and dental services under the National Health Service.

[9th May, 1961]

BE it enacted by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

Increase of,
and
exemptions
from, charges
for dental
and optical
appliances.

1.—(1) The authorised charges specified in the Schedule to the Act of 1951 for one denture shall each be increased by five shillings, and the maximum so specified of four pounds five shillings for more than one denture and the like maximum specified in subsection (2) of section two of the Act of 1952 (maximum charge for services some of which are chargeable under the Act of 1951) shall each be increased to five pounds.

(2) The authorised charge of ten shillings per lens (specified in the said Schedule for glasses other than children's glasses) shall be increased by two shillings and sixpence, or in the case of a bifocal or multifocal lens by ten shillings.

(3) Without prejudice to any other exemption from charges under the Acts of 1951 and 1952, no charge shall be made under section one of the Act of 1951 in respect of the supply of a dental appliance, or under section two of the Act of 1952 in respect of the relining of a denture or the addition of teeth, bands or wires to a denture, where at the relevant time the person for whom the appliance has been supplied or the work done—

(a) was under sixteen years of age or was receiving full-time school education, or

(b) was an expectant mother or had borne a child within the previous twelve months.

(4) Without prejudice to any other exemption from charges under the Act of 1951, no charge shall be made under section one of that Act for the supply of lenses for any glasses supplied under Part II or Part IV of the Act of 1946 or of the Act of 1947 if—

(a) the person for whom the glasses are supplied was at the relevant time of the age of ten or more and either under sixteen years of age or receiving full-time school education, and

(b) the frames of the glasses are of any description specified in the Statement of Fees and Charges.

(5) Regulations made with respect to any exemption under either of the two foregoing subsections may provide that it shall be a condition of the exemption that such declaration is made in such form and manner, or such certificate or other evidence is supplied in such form and manner, as may be prescribed by the regulations.

(6) In the foregoing subsection "regulations" means regulations made by statutory instrument, subject to annulment in pursuance of a resolution of either House of Parliament, by the Minister of Health as respects England and Wales or by the Secretary of State as respects Scotland.

2.—(1) The Minister of Health as respects England and Wales, and the Secretary of State as respects Scotland, may by regulations vary the amount or maximum amount of any charge authorised by section one of the Act of 1951 for any dental or optical appliance, or vary the descriptions of appliances for which any such charge is authorised, or vary the amount or maximum amount of any charge authorised by section two of the Act of 1952 (charges for dental treatment).

Variation
of charges for
dental
and optical
appliances
and dental
treatment.

(2) The power to vary a charge conferred by this section shall include power to direct that it shall not be payable.

(3) Subsections (6) and (7) of section seven of the Act of 1952 (which contain supplementary and consequential provisions as to regulations, and in particular provide for regulations to be subject to annulment by either House of Parliament) shall apply to regulations under this section as they apply to regulations under section one of that Act (charges for prescriptions, etc.).

(4) Section three of the Act of 1952 (which confers power to vary or abolish the charges authorised by the Act of 1951 or section two of the Act of 1952) is hereby repealed.

Interpretation.

3.—(1) In this Act—

“Act of 1946” means the National Health Service Act, 1946;

“Act of 1947” means the National Health Service (Scotland) Act, 1947;

“Act of 1951” means the National Health Service Act, 1951;

“Act of 1952” means the National Health Service Act, 1952;

“full-time school education” means full-time instruction in a school within the meaning of the Education Act, 1944, or the Education (Scotland) Act, 1946;

“the relevant time” means—

(a) in relation to a dental appliance supplied under Part II of the Act of 1946 or of the Act of 1947 or to an optical appliance supplied under Part II or Part IV thereof, the time of the examination or testing of sight leading to the supply of the appliance, or the first such examination or testing,

(b) in relation to a dental appliance supplied under Part IV of either of the said Acts, or in relation to services provided as part of the general dental services under Part IV thereof, the time of the making of the contract or arrangement in pursuance of which the appliance is supplied or services provided;

“the Statement of Fees and Charges” means the Statement of Fees and Charges prepared under Regulation 3 of the National Health Service (Supplementary Ophthalmic Services) Regulations, 1956, or Regulation 3 of the National Health Service (Supplementary Ophthalmic Services) (Scotland) Regulations, 1948, or any corresponding regulations for the time being in force.

(2) References in this Act to the supply of appliances include references to the replacement thereof. •

4.—(1) Any increase attributable to this Act in the sums payable out of moneys provided by Parliament under the Act of 1946 or the Act of 1947 shall be defrayed out of moneys so provided. Expenses and receipts.

(2) Any increase attributable to this Act in the sums payable into the Exchequer under the Act of 1951 or the Act of 1952 shall be paid into the Exchequer.

5.—(1) This Act may be cited as the National Health Service Act, 1961. Short title, citation, commencement and extent.

(2) This Act, so far as it applies to England and Wales, and the National Health Service Acts, 1946 to 1952, may be cited together as the National Health Service Acts, 1946 to 1961; and this Act, so far as it applies to Scotland, and the National Health Service (Scotland) Acts, 1947 to 1952, may be cited together as the National Health Service (Scotland) Acts, 1947 to 1961.

(3) This Act shall come into operation seven days after the passing thereof; but no increase made or exemption granted by this Act shall affect any charge if the relevant time fell before the commencement of this Act.

(4) This Act shall not extend to Northern Ireland.

(5) Subsection (3) of section eighty of the National Health Service Act, 1946 (which provides for the extension of that Act to the Isles of Scilly) shall have effect as if the references to that Act included references to this Act.

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Table of Statutes referred to in this Act

Short Title	Session and Chapter
Education Act, 1944	7 & 8 Geo. 6. c. 31.
Education (Scotland) Act, 1946	9 & 10 Geo. 6. c. 72.
National Health Service Act, 1946	9 & 10 Geo. 6. c. 81.
National Health Service (Scotland) Act, 1947... ..	10 & 11 Geo. 6. c. 27.
National Health Service Act, 1951	14 & 15 Geo. 6. c. 31.
National Health Service Act, 1952	15 & 16 Geo. 6 & 1 Eliz. 2. c. 25.

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